

111	Mitchell vs. Thovan Hospitality, LLC 2024-01377755	Motion for Final Approval re Class/PAGA Settlement Plaintiff Daniel Mitchell’s Motion for Final Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 2/7/2024, Plaintiff Daniel Mitchell, individually and on behalf of all current and former similarly situated employees in the State of California, filed a Class Action and Representative Action Complaint against Defendants Thovan Hospitality, LLC; Agnes Restaurant & Cheesry; Thomas Kalb; Vanessa Tilaka; and Allan Liao (together, “Defendants”). (ROA #2.) The complaint asserts ten (10) causes of action for various violations of the Labor Code’s wage-and-hour provisions, as well as conversion, injunctive relief, and unfair business practices. On 6/4/2024, pursuant to stipulation and order, Plaintiff filed the operative First Amended Class Action and Representative Action Complaint (“FAC”), adding claim for PAGA penalties. (ROA #55.) On 6/18/2024, Defendants filed their Answer. (ROA #57.) On 7/8/2025, Plaintiff filed a Motion for Preliminary Approval of Class Action and PAGA Settlement. On 10/23/2025, at the second hearing on the matter, the Court conditionally granted the motion. (ROA #124.) On 11/19/2025, the Court entered the signed order granting the motion. (ROA #137.) On 7/8/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #156.) Concurrently, Plaintiff filed a separate Motion for an Award of Attorneys’ Fees, Costs, and Enhancement Award to Daniel Mitchell. (ROA #161.) A separate motion was not necessary, as these awards are addressed as part of the Court’s order on the Motion for Final Approval. In any case, the request for attorneys’ fees and costs and Plaintiff’s enhancement was not initially supported by declarations from Plaintiff or Plaintiff’s counsel. Plaintiff belatedly filed these declarations on 7/17/2026, which is not 16 court days before the hearing but only 9 court days before. The Court previously ordered (ROA #146), and the Code of Civil Procedure also requires, that moving papers must be filed at least 16 court days before the hearing. Accordingly, SETS an Order to Show Cause re Monetary Sanctions against Class Counsel on August 27, 2026 at 2:00 p.m. in Department CX102 for counsel’s failure to comply with the Court’s previous order. Any response to the OSC must be filed at least 5 court days prior to the OSC hearing. Plaintiff’s Motion for Final Approval seeks approval of the Class Action and PAGA Settlement Agreement and Class Notice, as amended by Addendum #1 and Addendum #2 (collectively, “Settlement Agreement”), which provides for the settlement of Plaintiff’s class and PAGA claims for the non-
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reversionary gross settlement amount (“GSA”) of \$245,342.59 after the triggering of the escalator clause and the initial \$240,000.00 GSA was increased. The GSA includes \$20,000 allocated for PAGA penalties.

The Class is comprised of 302 Class Members, defined as “all current and former non-exempt employees of Defendants in California who worked for Defendants during the Class Period.” The Class Period is 2/7/2020 to 3/28/2025.

The settlement also includes 170 Aggrieved Employees, defined as “all current and former non-exempt employees of Defendants in California who worked for Defendants during the PAGA Period.” The PAGA Period is 2/6/2023 through 3/28/2025.

The settlement administrator, Apex Class Actions, LLC, reports as follows:

- On 1/20/2026, the administrator sent class notices via U.S. Mail to 302 Class Members, including 170 Aggrieved Employees .
- As of 7/8/20026:
 - 27 notices were returned as undeliverable. After skip tracing, administrator obtained updated addresses for and remailed 22 notices, and 5 notices remain undeliverable.
 - One request for exclusion was received from Malakai Monterrosa, who will not be bound by the judgment in this case.
 - No objections or workweek disputes were received.

Therefore, 99.7% of the Class is participating in the settlement.

The Court concludes that the \$245,342.59 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only.

The Court concludes that an attorneys’ fee award totaling \$73,602.77 or 30% of the GSA, constituting a 0.25 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action’s contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage and legal research costs. The Court also notes that although Plaintiff’s moving papers and counsel’s declaration states that Plaintiff is requesting \$18,715.00 in costs, the actual cost report submitted in support of the request shows that counsel incurred \$18,715.73. Counsel does not explain this \$0.73 discrepancy. In any case, the Court deducts \$480.00 for overhead costs from the \$18,715.73 reflected in the cost report.

The Court further concludes that a Class Representative Service Payment of \$5,000 is fair, adequate, and reasonable for a class and settlement of this

		size, considering that there was nothing extraordinary about Plaintiff's contribution to the case. The Court has identified the following minor issue with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment: 1. Counsel has failed to attest as to whether there are any fee-splitting agreements with any other counsel. These issues must be addressed by Class Counsel within five (5) court days. Upon resolution of this issue, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA: • Attorneys' fees totaling \$73,602.77 awarded to Class Counsel; • Litigation costs totaling \$18,235.73 awarded to Class Counsel; • Settlement administration costs of \$8,500.00 awarded to Apex Class Action, LLC; • Class Representative Service Payment of \$5,000.00 awarded to Plaintiff Daniel Mitchell; and • \$15,000.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties. The Net Settlement Amount payable to all Class Members is \$125,004.09, including the \$5,000.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments. Within five (5) court days, Class Counsel must also submit a revised Proposed Order of Final Approval and Judgment with the following revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. The proposed order and judgment should identify the Settlement Agreement by its actual name. 3. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached. 4. Counsel should also consistent about using the same term to refer to the same thing (e.g., counsel should not use "Agreement," "Settlement Agreement," and "Settlement" as different capitalized terms to refer to the same thing). 5. The proposed order and judgment should identify by name the one class member who opted out and thus will not be bound by the judgment. 6. The proposed order and judgment should also state that no class members submitted workweek disputes.
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113	Barrons vs. Smith Linden & Basso, LLP 2013-00648240	1.Motion for Summary Judgment and/or Adjudication (ROA 2115) – Davies DEF [MOOT BASED ON NOS AND NOTICE OF WITHDRAWAL] 2.Motion for Summary Judgment and/or Adjudication (ROA 2205) – Basso DEF 3.Trial Readiness Conference Defendants Smith, Linden, & Basso LLP; Allen L. Basso; and Allen A. Basso's (collectively, the "Basso Defendants") motion for summary judgment is DENIED. 1. Evidentiary Objections "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc. [CCP], § 437c, subd. (q).)